

Form No.HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.8508 of 2025.

Rana Zafarullah **vs.** Abdul Ghafoor & others

S.No. of order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel, where necessary
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12.02.2025.	Ch. Zulqarnain Baryar, Advocate for the petitioner.
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By filing this constitutional petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner a retired government official, has called in question order dated 13.11.2024, whereby learned Additional District Judge, Narowal proceeded to allow the revision petition filed by respondent No.1/plaintiff by setting aside order dated 26.04.2024, passed by the learned Civil Judge 1st Class, Narowal.

2. Briefly, the facts of the case are that the petitioner was proceeded against ex parte in the civil suit titled “Abdul Ghafoor vs. Muhammad Abbas Qaiser, etc.” on 07.02.2012 before the civil court, Narowal filed by respondent No.1/plaintiff, wherein petitioner was impleaded as defendant No.5 in his official capacity of “Tehsildar. On 09.07.2012, the trial court after publishing summons in the newspaper initiated ex-parte proceedings against defendant No.5, and he remained absent throughout the proceedings. After elapse of 12 years, he filed an application before the trial court for setting aside ex parte order, which was allowed vide order dated 26.04.2024, Subsequently, respondent No.1/plaintiff challenged the order dated 26.04.2024 before the learned

Additional District Judge through a revision petition, which was allowed and the application of the petitioner was dismissed on the ground of limitation and lack of due diligence. Aggrieved by this order, the petitioner has invoked the constitutional jurisdiction of this Court.

3. Learned counsel for the petitioner argues that an ex-parte order was passed without proper service of summons and he was unaware of the proceedings. He further contends that his retirement from government service should not preclude him from defending himself. Also states that the trial court proceeded to set-aside ex-parte proceedings dated 09.07.2012 through a well-reasoned order dated 26.04.2024, but the revisional court has set-aside this order without assigning any lawful reasons and that the impugned order is illegal and unlawful.

4. I have heard learned counsel for the petitioner and gone through the record with his able assistance.

5. On 07.02.2012, respondent No.1/plaintiff instituted a suit for declaration, permanent injunction alongwith cancellation of documents, wherein all the defendants appeared and filed their written statements except present petitioner, who is defendant No.5 in the said suit. The trial court issued process for procuring representation of the petitioner and eventually he was directed to be served through publication in the newspaper, but he did not bother to appear and vide order dated 09.07.2012, ex-parte proceedings were carried out against him by the trial court. It is imperative to note here that after elapse of twelve years, the petitioner moved an application for setting aside ex-parte proceedings, which was accepted

by the trial court vide order dated 26.04.2024; however, in revision petition filed by respondent No.1/plaintiff, said order was set-aside by the revisional court in terms of order dated 13.11.2024 holding that the application filed by the petitioner is hopelessly time barred.

6. It is a settled principle of law that ex-parte proceedings can be set-aside only within the prescribed limitation period, except in cases where lack of proper service is conclusively established. In the present case, the petitioner filed an application for setting aside ex-parte proceedings after 12 years, which is far beyond the limitation period prescribed under the Limitation Act, 1908 and no justifiable grounds exist for condoning such an excessive delay. No cogent evidence has been provided to establish misrepresentation on the part of private respondent/plaintiff. Moreover, law favours vigilant and not the indolent.

7. The Hon'ble Supreme Court of Pakistan in case Regional Police Officer, Dera Ghazi Khan Region and others vs. Riaz Hussain Bhakhari (2024 SCMR 1021) while dealing the ground for condonation of delay as well as vigilance has held as under:-

“7. It is also a well settled exposition of law that while considering the grounds for condonation of delay, whether rational or irrational, no extraordinary clemency or compassion and/or preferential treatment may be accorded to the Government department, autonomous bodies or private sector/organizations, rather their case should be dealt with uniformly and in the same manner as cases of ordinary litigants and citizens. No doubt the law favours adjudication on merits, but simultaneously one should not close their eyes or oversee another aspect of great consequence, namely that the law helps the vigilant and not the indolent. At this juncture, it is quite relevant to quote a Latin maxim "Leges vigilantibus non dormientibus subserviunt" or "Vigilantibus Non Dormientibus Jura

Subveniunt" which articulates that the law aids and assists those who are vigilant but not those who are sleeping or slumbering. Delay in invoking a lawful remedy by a person or entity who was sleeping over their rights may be denied. The doctrine of equality before law demands that all litigants, including the State, are accorded the same treatment and the law is administered in an evenhanded manner.

8. According to Section 22A of the Punjab Civil Servants Act, 1974, civil servants are generally immune from personal liability for actions performed in good faith while exercising their official duties. Any action undertaken within the scope of official authority is presumed to be an act of the government, and thus, any legal proceedings in such matters are usually directed against the government, not the individual officer. Moreover, there is no statutory obligation requiring retired government officials to defend their past official actions in a court of law, except in cases where they acted beyond their legal authority (*ultra vires*), their actions involved mala-fide intent, corruption, or misconduct or they violated constitutional rights or engaged in personal wrong-doing. Therefore, in absence of any such allegations, compelling a retired officer to defend official actions taken during service is unwarranted and legally unjustified.

9. The constitutional jurisdiction under Article 199 cannot be invoked as a substitute for ordinary legal remedies, particularly where a petitioner has failed to pursue the available legal options within the prescribed statutory timeframe. The revisional court correctly dismissed the application, as no jurisdictional defect or violation of fundamental rights has been demonstrated. Furthermore, any ongoing civil litigation between private parties before the Civil Court is separate from the

petitioner's case and shall have no legal consequence for him. Therefore, his attempt to challenge the ex-parte proceedings at this stage is legally unsustainable.

10. Learned counsel for the petitioner has not been able to point out any legal or factual infirmity in the impugned order on the above question of fact to justify the interference by this Court in the writ jurisdiction. It is settled law that the High Court in exercise of its constitutional jurisdiction is not supposed to interfere in the findings on the controversial question of facts. The scope of the judicial review of the High Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 in such cases, is limited to the extent of misreading or non-reading of evidence or if the finding is based on no evidence, which may cause miscarriage of justice. It is not proper for the High Court to disturb the finding of fact through reappraisal of evidence in writ jurisdiction or exercise of this jurisdiction as a substitute of revision petition or appeal. Reliance is placed on Naik Muhammad vs. Mazhar Ali and others (2007 SCMR 112).

11. In light of the above discussion, this petition is dismissed in *limine*, as no interference is warranted in the impugned order.

(Malik Javid Iqbal Wains)
Judge

Approved for reporting

Judge

M.AYYUB